

OREGON STATE HOSPITAL

POLICY

SECTION 7: Patient Rights **POLICY: 7.011**

SUBJECT: Faiths, Beliefs, and Practices

POINT PERSON: Director of Spiritual Care

APPROVED: Dolores Matteucci

DATE: MAY 18, 2023

Superintendent

SELECT ONE: ☐ New policy

☐ Minor/technical revision of existing policy

☐ Reaffirmation of existing policy

☒ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. Oregon State Hospital (OSH) acknowledges the inherent, constitutionally-protected rights retained by patients to believe, express, and exercise the spiritual/religious system of the patient's choice. OSH also acknowledges that a patient's spiritual/religious system is an important part of recovery. Therefore, OSH extends those opportunities as reasonably appropriate for patients to practice spiritual/religious system freedom in a manner consistent with facility requirements for security, safety, health, orderliness, and stewardship of resources.
- B. This policy establishes aspects of Spiritual Care department operations, including procurement and handling of spiritual/religious items, and describes patient supports related to spiritual/religious systems.
- C. This policy applies to all staff.

II. POLICY

- A. OSH acknowledges that a patient's access to culturally, spiritually, and linguistically appropriate services assists with positive treatment outcomes for patients. A patient does not need to be a member of a specific spiritual/religious system to participate in ceremonies, traditions, or practices offered by the Spiritual Care department.
- B. Chaplains, staff, spiritual/religious system representatives, members of the community, and patients may not attempt to persuade another individual to

convert from one belief system to another belief system or criticize the spiritual/religious beliefs and/or practices of others at OSH.

- C. Nothing in this provision prohibits the sharing of information regarding a spiritual/religious system at the request of a patient.
- D. Only staff in Spiritual Care may provide religious/spiritual items and services to a patient. Patients and staff not in Spiritual Care should not be providing spiritual/religious items or services to others.
- E. OSH encourages all patients to engage in ceremonies, traditions, and practices in the manner that a patient identifies, which may include the use of specific items or property.
 - 1. Some ceremonies, traditions, and practices may include the use of Native artifacts and sacred items. Such items must be handled in accordance with OSH policy 7.017, "Native Artifacts and Property."
 - 2. Religious and/or spiritual item categories for the purposes of this policy are defined in Attachment A. Requests for any spiritual/religious items that may not be included under a category in Attachment A shall be evaluated by the Spiritual Care department and the Product Risk Assessment process per OSH policy 4.018, "OSH Purchase and Maintenance: Supplies, Assets, and Equipment."
 - 3. Spiritual/religious items that may not be included under a category in Attachment A and are not approved in advance by the Spiritual Care department may be treated in accordance with OSH policy 8.044, "Contraband."
- F. Within the limitations of resources and the need for facility, security, safety, health, orderliness, and stewardship of resources, OSH:
 - 1. offers patients the opportunity to practice their spiritual/religious system of choice;
 - 2. provides for the orderly management of spiritual/religious system opportunities for each patient;
 - 3. seeks methods to promote patient and staff respect for all spiritual/religious system objects and practices; and
 - 4. consults and collaborates with authorized spiritual/religious system representatives and the OSH Spiritual Care department to purchase artifacts and items for patients to use during ceremonies and other spiritual/religious practices.

- G. Authorized belief system representatives and Spiritual Care department staff attend to the spiritual needs of all patients by performing any or all of the following functions related to spiritual beliefs and/or religion:
1. Conduct spiritual/religious system services for patients,
 2. Provide spiritual, religious, and moral instruction to patients affiliated with a spiritual/religious system;
 3. Interview and provide requested spiritual care assistance to patients;
 4. Provide consultation and education to staff and patients (either as an individual or in a group gathering) regarding spiritual/religious systems and proper handling/intended use of any items associated with a spiritual/religious system or practice;
 5. Provide assistance to patients and staff with purchasing, receiving, and sending spiritual/religious items per Procedures A;
 6. Provide consultation to staff when a patient requires an individualized plan for handling, storing, and/or using spiritual/religious items;
 7. Provide assistance to patients and staff if spiritual/religious items need to be inspected or moved, such as during unit searches;
 8. Provide assistance to patients and staff if access to an approved spiritual and/or religious item is limited or restricted in accordance with OSH policy 7.015, "Patient Rights Restrictions," and this policy's procedures.
 9. Consult with staff about the spiritual, moral, ethical, or social concerns of patients affiliated with cultural and/or a spiritual/religious system; and
 10. Work under the guidance and supervision of the Director of Spiritual Care.
- H. Oregon State Hospital (OSH) follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- I. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Authorized belief system representative(s)" include but are not limited to Native Services department, Chaplains, and other OSH staff authorized by the Spiritual Care department.
- B. "Belief system" in this policy includes spiritual or religious beliefs, practices, and traditions.
- C. "Belief system representative" is a recognized leader of a belief system such as a priest, pastor, medicine man or woman, imam, or rabbi who has arranged with Spiritual Care to provide belief system services to patients.
- D. "Native artifacts" and "sacred items" are as defined in OSH policy 7.017, "Native Artifacts and Property."
- E. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).

IV. PROCEDURES

Procedures A Ordering, Sending, and Receiving Spiritual/Religious System Items

V. ATTACHMENTS

Attachment A Spiritual/Religious Items List

VI. RELATED OSH POLICIES AND PROTOCOLS

4.018 OSH Purchase and Maintenance: Supplies, Assets, and Equipment

5.018 Volunteers

6.011 Treatment Care Planning

7.001 Mail and Packages for Patients

7.005 Patient Rights

7.015 Patient Rights Restrictions

8.019 Staff Response to Alleged Criminal Acts and Contraband

8.026 Visitors to Patients

8.037 Patient Property and Valuables

8.044 Contraband

Spiritual Care - Oregon State Hospital Handbook of Spiritual Beliefs and Practices

VII. REFERENCES

42 U.S.C. § 2000bb-2000bb-4.

Oregon Administrative Rule §§ 309-102-0100 - 309-102-0150.

Oregon Administrative Rule §§ 309-106-0000 – 309-106-0020.

Oregon Administrative Rule § 309-108-0000 – 309-108-0020.

Oregon Health Authority (2018). Tribal Consultation and Urban Indian Health Program Confer Policy.
Author.

Oregon Revised Statute § 179.375.

Oregon Revised Statute §§ 182.162 - 182.168.

U. S. Constitution, Amendment 1.